

1.

CASE #	CASE NAME	HEARING NAME
CVRI2104285	ZAMARRIPA VS XTRACTOR DEPOT LLC	MOTION FOR LEAVE TO FILE CROSS COMPLAINT

Tentative Ruling: GRANTED AS UNOPPOSED. WILL NOT CHANGE TRIAL DATE.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402162	JONES VS SIENS	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling: PROOF OF SERVICE: Proper

Grant the motion. Overrule Defendant's objections.

Plaintiff Samuel L. Jones alleges negligence against Defendants Kenneth John Siens and Skeeter Trucking seeking damages related to a car accident on January 8, 2023. Plaintiff alleges Siens was driving a 2020 Peterbilt Tractor with a bronze Mack Dump trailer in the course and scope of his employment for Skeeter Trucking when his truck collided with Plaintiff's car.

Plaintiff is eighty years old and seeks trial preference under CCP §36(a). Plaintiff asserts he suffers from interstitial lung disease (ILD), Type 2 diabetes, and hypertension. The motion is supported by a declaration from Dr. Anil Date, M.D., who states Plaintiff "suffers from a rapidly diminishing reserve of the physical and cognitive stamina required to endure stressful or prolonged environments, such as trial." (Date Decl. ¶¶6.) It is Dr. Date's professional opinion that "Mr. Jones's health is in a precarious and declining state. If this matter is delayed beyond the next 120 days, it is highly probable that Mr. Jones will lack the physical capacity, respiratory stamina, and cognitive endurance required to meaningfully participate in his own trial or assist his counsel." (¶¶7.)

Defendant Kenneth John Siens dba Skeeter Trucking opposes the motion. Defendant argues Dr. Date's opinion is not enough to warrant trial preference because Dr. Date did not physically examine Plaintiff and only offered speculative predictions regarding Plaintiff's future medical conditions. Defendant also filed objections to Dr. Date's declaration.

In Reply, Plaintiff argues Defendant's objections are moot because the motion relies on Plaintiff's Department of Veterans Affairs' medical records which are in Defendant's possession. The Reply also includes the declaration of Ari E. Moss to authenticate the VA records.

Plaintiff brings this motion pursuant to CCP §36(a), which provides that a party who is over 70 years of age may petition the court for preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is